

Rajesh Kumar Singh v. U.P. Power Corporation Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 19 September 2023 · 2023:AHC:180401-DB · Writ - C No. 25419 of 2023 · **Petition disposed; Clause 6.5 application to be decided without limitation**

HEADNOTE

Electricity dues challenged on the ground that the consumer never took a connection and that the premises stood acquired by the National Highway Authority of India. Writ disposed without a merits decision: a Clause 6.5 application, if filed, to be considered without limitation and decided within one month, with coercive action stayed for two months or until that decision.

FACTUAL SUMMARY

Rajesh Kumar Singh approached the Allahabad High Court against U.P. Power Corporation Ltd. and two others, seeking quashing of electricity dues. He said he had never been given an electricity connection, and that the property on which consumption was alleged had been acquired by the National Highway Authority of India and was not in his possession. On 2 August 2023 counsel for the licensee told the Court that the petitioner's pending applications would be decided within three weeks and that no coercive steps would be taken until then.

REUSABLE CONSTRUCTIONS

1. A writ for quashing of electricity dues may be disposed without a merits finding by directing that a Clause 6.5 application, if filed, be considered in accordance with law and without the bar of limitation, and be decided within the period the Court fixes. ¶ 2
2. With a direction to decide a Clause 6.5 application, the Court may restrain coercive recovery for a stated period or until that application is decided. ¶ 2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed dues sent to Clause 6.5 without a limitation bar

HOLDING

Without deciding whether the petitioner ever obtained a connection or whether the demand survived acquisition of the property by the National Highway Authority of India, the Court disposed of the writ. If the petitioner files an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, it shall be considered in accordance with law, without going into limitation, and decided within one month of presentation. No coercive action shall be taken for two months or until that application is decided. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined to quash the dues in the writ and disposed of the petition by directing the petitioner to an application under Clause 6.5. ¶ 2-3

clause-6.5-statutory-remedy-disputed-bill The dispute was over electricity dues the petitioner denied, having never taken a connection; Clause 6.5 was treated as the forum to consider that dispute in accordance with law. ¶ 1-2

para-6.5-objection-before-coercive-recovery Coercive action was restrained for two months or until the Clause 6.5 application is decided, so recovery would not proceed before that representation is considered. ¶ 2

NOT DECIDED — WHETHER THE PETITIONER EVER OBTAINED AN ELECTRICITY CONNECTION, AND WHETHER ANY DUES SURVIVE ACQUISITION OF THE PROPERTY BY THE NATIONAL HIGHWAY AUTHORITY OF INDIA.

Left open for the Clause 6.5 authority, which is to consider a duly filed application in accordance with law and without the bar of limitation. ¶ 1-2

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